

26SMCV02679 26SMCV02679

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TENTATIVE

RULING

DEPARTMENT

207

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16, 2026

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MOTION

Motion to Quash Deposition Subpoena for Production of
Business Records to WFG National Title Insurance Co.

MOVING PARTY

Defendant Debora A. Gregory, individually and as a Trustee
of Debora Ann Gregory Living Trust dated June 9, 2011, as amended

OPPOSING PARTY

Plaintiff Ami Shah

MOTION

This case arises from a dispute concerning an outstanding debt.

On May 14, 2026, Plaintiff Ami Shah ("Plaintiff") filed suit against Defendants Debora A. Gregory, individually and as Trustee of the Debora Ann Gregory Living Trust dated June 9, 2011, as amended ("Gregory") and ZZ Enterprises, Inc. ("ZZ"). The operative First Amended Complaint ("FAC") was filed on August 11, 2026 against the same Defendants and alleges three causes of action for (1) avoidance of voidable transfer and obligation – actual intent); (2) avoidance and recovery of voidable transfers – actual intent; and (3) declaratory relief.

Gregory now moves to quash a deposition subpoena for production of business records served on WFG National Title Insurance Co. Plaintiff opposes the motion and Gregory replies.

LEGAL STANDARD

"In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).)" (Board of Registered Nursing v. Superior Court of Orange County (2021) 59 Cal.App.5th 1011, 1030 (hereafter Board of Registered Nursing).) "To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena." (Ibid.).)

"A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item, and shall specify the form in which any electronically stored information is to be produced, if a particular form is desired.' [Citation.]" (Board of Registered Nursing, supra, 59 Cal.App.5th at p. 1030.)

If a subpoena requires the production of documents, the court may quash the subpoena entirely or modify it. (Code Civ. Proc., § 1987.1, subd.

(a.)

EVIDENTIARY OBJECTIONS

The Court rules as follows on
Gregory's evidentiary objections:

1.
Overruled

2.
Overruled

3.
Overruled

4.
Overruled

ANALYSIS

I.
Motion to Quash

Defendant moves to quash the
deposition subpoena on the following grounds:

(1) the notice to consumer was improperly served
only by email to Behzad Nahai, Esq. and Jeffrey Lewiston, Esq. of Nahai Law
Group, who are not attorneys of record for Gregory as Gregory has not yet
appeared in this matter and who are not authorized to accept service of process
on Gregory's behalf;

(2) the financial records sought violate
Gregory's right to privacy and there has been no protective order entered in
this case; and

(3) the documents sought are not relevant or
likely to lead to the discovery of admissible evidence

Taking Defendant's first

argument, Code of Civil Procedure, Section 1985.3 requires that service be made

"To the consumer personally, or at his or her last known address, [...] or, if

he or she is a party, to his or her attorney of record." (Code Civ. Proc., § 1985.3, subd. (b)(1), emphasis added.)

Although Gregory is a party to this

action, Gregory does not yet have an attorney of record in this action, as Plaintiff has not demonstrated proper service of the summons and complaint on Gregory.

On May 20, 2026, Plaintiff filed a

Proof of Service indicating Plaintiff mailed Gregory a copy of the summons and complaint with a notice and acknowledgment of receipt on May 14, 2026, but there is no indication that Gregory signed and returned the notice.

On May 29, 2026, Plaintiff filed a

Proof of Service indicating the summons and complaint "by first class mail" at an address in Marina Del Rey, California.

But other than a notice of acknowledgment and receipt, service by first-class mail is generally only appropriate for service on a person outside the State of California. (See Code Civ. Proc., § 415.40.)

On May 29, 2026, Plaintiff filed a

proof of service of the summons and complaint via electronic service to attorneys Nahai and Lewiston. But absent a Court order, electronic service of the summons and complaint is generally not an appropriate means of serving the summons and complaint. Further, electronic service is generally not appropriate unless a party has expressly agrees to it.

Thus, there is no evidence that

Gregory has been properly served with a copy of the summons and complaint. As such, Gregory had not yet appeared and did

not have counsel when the deposition subpoena was purportedly served.

Gregory also advances the Declaration of Jeffrey Lewiston, which provides:

1. I am an attorney associated with of Nahai Law

Group, a professional corporation ("NLG") attorneys for specially appearing defendant Debora A. Gregory, individually and as Trustee of the Deborah Gregory Living Trust dated June 9, 2011, as Amended ("Gregory") as to this the subject Motion to Quash Deposition Subpoena for Production of Business Records (the "Subpoena") to WFG National Title Insurance Co. (the "Witness"), issued by attorney John Sullivan ("Sullivan") on behalf of plaintiff Ami Shah ("Plaintiff") and served by JPL Process Service, LLC (the "Deposition Officer") in the above-entitled action (the "Action"). As to the facts contained in this declaration, I know them to be true of my own knowledge or I have gained knowledge from the records and files of Nahai Law Group which are maintained in the ordinary course of the business of Nahai Law Group. If called upon to testify, I would and could testify competently to the facts set forth herein.

2. On June 2, 2026, at 12:04 a.m., Sullivan emailed to Behzad Nahai, Esq. of Nahai Law Group and myself, a Notice of Consumer to Debora Gregory, and the Subpoena. Attached hereto as Exhibit "A" and incorporated herein by reference is a true and correct copy of such email, attaching the Notice to Consumer and the Subpoena. As reflected by Sullivan's proof of service attached to the Notice to Consumer, Plaintiff did not serve Gregory personally or otherwise with such Notice.

3. Gregory has not been served with the Summons and Complaint in this Action and she has not generally appeared in the Action. In May 2026, Gregory retained NLG to specially appear in the Action to represent Gregory solely in connection with objecting to the Notice of Pendency of Action filed in the Action. In support of such objections, Gregory filed a Declaration in this Action on May 22, 2026 (the "Gregory Deel") which is attached hereto as Exhibit "B" for the Court's convenience and incorporated herein by reference.

4. NLG has not consented in writing, or otherwise, to accept service of process, including, without limitation, the Notice to Consumer on behalf of Gregory.

5. I met and conferred with Plaintiff's counsel Sullivan, by writing him the letter attached hereto as Exhibit "C" and incorporated herein by reference (the "Demand Letter"). Sullivan did not respond to the Demand Letter and neither Plaintiff nor Sullivan have voluntarily withdrawn the Subpoena.

Furthermore, no protective order has been entered in the Action.

(Lewiston

Decl. ¶¶ 1-5.) Further, the proof of service attached to the deposition subpoena indicates only that Lewiston and Nahai were served electronically. (See Ex. A to Lewiston Decl.) Therefore, the Court finds that the Notice to Consumer was not properly served on Gregory.

In opposition, Plaintiff argues only that Gregory had actual notice of it, by virtue of her timely objection to it. But actual notice is not the standard. Rather, the statute requires personal service, unless the person is a party to the action, in which case service may be effectuated on her counsel of record. Because Gregory does not yet have counsel of record in this matter, Plaintiff's attempted service on Gregory's counsel was insufficient.

Plaintiff also argues that Gregory was additionally served with the Subpoena by mail. (Sullivan Decl. ¶ 3 and Ex. 2.) But that does not cure the deficiency of failing to personally serve the notice to consumer on a party who does not yet have counsel of record.

II.

Sanctions

In ruling on a motion to quash, "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).) "Unreasonable or oppressive demands" include "unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Gregory seeks monetary sanctions against Plaintiff and her attorney of record, John W. Sullivan, jointly and severally in the amount of \$5,100.

The Court

agrees that because the Notice to Consumer was not properly served on Gregory and Plaintiff made no legal arguments to the contrary in opposition, that the motion to quash was opposed without substantial justification, warranting monetary sanctions. Notwithstanding, the Court does not find \$5,100 to be reasonable.

As such,

the Court grants in part Gregory's request for monetary sanctions in the amount of \$1,500, representing four (4) hours at Lewiston's hourly rate of \$375.

CONCLUSION AND ORDERS

The Court grants in part

Plaintiff's motion, finding the Notice to Consumer was not properly served. Accordingly, the Court quashes the subpoena.

Further, finding Plaintiff

opposed the motion without substantial justification, the Court awards Gregory monetary sanctions against Plaintiff and Plaintiff's attorney of record, John W.

Sullivan, jointly and severally, in the amount of \$1,500.00, payable to Gregory, by and through Gregory's counsel, specially appearing, within thirty (30) days of notice of the Court's order, unless otherwise agreed to by the parties in writing.

Further, the Court orders

Gregory to lodge a proposed Order in conformity with the ruling on or before September 23, 2026.

The Clerk of the Court shall

provide notice of the Court's ruling.

DATED:

September 16, 2026 ____/s/____

Michael E. Whitaker

Judge

of the Superior Court